

VCU334947 Tulare Lake Basin Water Storage District vs. Sandridge Partners, L.P.

County: tulare

Division: Civil Law and Motion

Department: 9-Honorable Nathan D. Ide

Hearing date: 2026-08-24

Motion: Motion to Change Venue

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Re: Tulare Lake Basin Water Storage District vs. Sandridge Partners, L.P.

Case No.: VCU334947

Date: August 24, 2026

Time: 8:30 A.M.

Dept. 9-Honorable Nathan D. Ide

Motion: Motion to Change Venue

Tentative Ruling: The motion is denied, as are both parties' requests for sanctions.

Defendant Sandridge Partners, L.P. (Sandridge) moves to transfer this interpleader action to the Kern County Superior Court. Sandridge asserts this court is an improper venue for this action, and that the only appropriate venue is Kern, where the issues raised in the underlying complaint "have been pending since 2018."

This action

Tulare Lake Basin Water Storage District (TLB) brings this action against Sandridge and Tulare Lake Reclamation District No. 761 (RD 761) to compel them to interplead and litigate alleged "conflicting" claims with respect to where water from the Kings River may be "used" that Sandridge has "placed an order for" (and/or otherwise "has or will place an order" for). The claims allegedly conflict with respect to whether the subject water may be used outside an area described in the complaint as "the Kings River Service Area" or whether it cannot, but, in a more accurate sense, they conflict with respect to the efficacy of a stipulated judgment that clearly and unambiguously determines precisely that issue.

The following is a summary of pertinent background allegations.

TLB is a water storage district under specified provisions of the Water Code. RD 761 is a public entity under other specified provisions of the Water Code. TLB and RD 761 are both "member units" of the Kings River Water Association (KRW), a non-party.

The “member units” of KRWA “are parties to various agreements, which establish a water rights schedule for the delivery and use of Kings River water.” (In its papers, Sandridge asserts, without dispute by any party, that “KRWA was organized to allocate water from the Kings River to its Member Units and, through them, to the landowners within each Member Unit, who hold the right to the water for use.”)

Sandridge “is a landowner within the jurisdictional boundaries of RD 761 ... ” and held or claimed, at times relevant to the complaint, some right to Kings River water incident, at least in part, to its status as “a landowner within the jurisdictional boundaries of RD 761.”

“TLB operates the Empire Weir No. 2 headgate, the Tulare Lake Canal Company headgate, and the Blakeley headgate,” which “allow water to flow from the Empire Weir No. 2 pool just south of the community of Stratford into various water channels including the Blakeley Canal.” “TLB receives orders for Kings River water from the water users within four member units of the Empire Weir No. 2 account. Water ordered from the Empire Weir No. 2 account is water that is to be delivered into those waterways so they can be delivered to landowners for irrigation, a beneficial use.”

Four member units of the KRWA, including both TLB and RD 761, “comprise the ‘Empire Weir No. 2’ account under the Kings River water rights schedule,” and TLB “maintains and allocates water for [these] four member units”

“Once TLB receives an order from the Empire Weir No. 2 water users, it ... places the order with the KRWA,” which “is authorized to contact the Army Corps of Engineers to make the requested releases from storage at Pine Flat Dam.”

“RD 761 [had] a current balance of Kings River water in storage at Pine Flat Dam [as of the date the complaint was filed] and [was] anticipated to use such water” during a “Coordinated Run” of Kings River water “on the lower channel” set to commence “on May 15, 2026.”

Prior to the scheduled “Coordinated Run,” RD 761, “[o]n or about March 31, 2025,” “accepted an offer of compromise from KRWA,” in which it “undertook specific commitments” later incorporated in “a judgment entered April 16, 2025.” The stipulated judgment was entered in Kern County Superior Court case no. BCV-19-100523, in favor of KRWA against RD 761, and provided, in relevant part, as follows:

“RD 761 shall not deliver, and is enjoined from delivering, any Kings River water to its landowners or any other party for use on lands outside the Kings River Service Area as shown on Exhibit A to the 1963 Agreement among the member units of the Kings River Water Association.”

On May 4, 2026, KRWA sent a letter to RD 761 seeking to confirm that it would comply with the April 2025 stipulated judgment.

Sandridge—not RD 761—first responded, stating that enforcement of the judgment ““could result in [it] suffering significant damage exceeding seven figures” Further, Sandridge did not confirm “it [would] comply with the RD 761 Judgment” and “instead ... encouraged RD 761 to not seek compliance with the RD 761 Judgment” as it would result in Sandridge’s “inability to deliver water outside of the Kings River Service Area, thus causing it damages in the seven figures.” It is not clear, from the complaint, why it would be significant whether Sandridge indicated it would “comply” with the judgment, since it is not alleged, and evidently not the case, that Sandridge was bound by it.

RD 761 itself later responded, essentially confirming, for its part, that it would comply with the stipulated judgment. Notably, the way it stated this, in a May 11, 2026 letter to KRWA, was as follows:

“We can also inform you that we are not aware of any effort, plan, request or intention on the part of RD 761 to violate or act contrary to the August 14, 2024 settlement agreement or the April 16, 2025 Judgment and Order We therefore would not recommend that the RD 761 Board take any action at this time contrary to the terms of the August 14, 2024 settlement agreement or the April 16, 2025 Judgment and Order.”

A few days after RD 761's letter to KRWA, “[o]n May 14, 2026, [Sandridge] placed an order for RD 761 Kings River water to TLB (‘Water Order’).”

Under the heading of its interpleader cause of action, TLB alleges that it “claims no interest in the Water Order placed by Sandridge”; that the “RD 761 [stipulated] Judgment ... enjoins RD 761 from delivering to its water users Kings River water for use outside of the Kings River Service Area” and the judgment “was not appealed and is final”; that Sandridge “has or will place an order with TLB to deliver RD 761 Kings River water for use outside of the Kings River Service Area during the Coordinated Run”; and, “[a]s a result of the foregoing,” Sandridge and RD 761 “do, or may, assert multiple, conflicting claims to the above-described water”

TLB alleges that it faces “conflicting” claims with respect to the Sandridge “Water Order” (and/or other Kings River water for which Sandridge “has or will place an order ... for use outside of the Kings River Service Area during the Coordinated Run”) in that, on the one hand, “RD 761 by virtue of the RD 761 Judgment demands the water shall be used within a certain geographic location, the Kings River Service Area”; and, on the other, Sandridge “demands the water be put to use outside the Kings River Service Area.”

Accordingly, the allegedly conflicting claims arise from the alleged stipulated judgment in the Kern litigation referenced in the interpleader complaint.

This is the case where Sandridge claims the issues raised in the interpleader action “have been pending since 2018.”

The Kings/Kern litigation

The Kern litigation in which the stipulated judgment arose was initially commenced in Kings County, in October 2018, by TLB, along with three other co-plaintiffs (other “member units” of KRWA, and KRWA itself), with the aim of preventing defendants—Sandridge and RD 761—from transferring, selling, conveying or assigning Kings River water or water rights for use outside of the “Kings River Service Area.”

Shortly after the case was filed, the parties stipulated to transfer venue to Kern. Then, shortly after that, Sandridge and RD 761 filed a cross-complaint.

TLB and its co-plaintiffs thereafter filed an application for a preliminary injunction for the relief sought in their initial complaint pending trial. That application was denied in a ruling issued in April 2019.

After the ruling denying the application for preliminary injunction, Sandridge and RD 761, in January 2021, filed a second amended cross-complaint against TLB and its co-plaintiffs in the underlying action, and against another named defendant. Sandridge and RD 761 essentially sought relief to the effect that Kings River water would be delivered to RD 761 (and, effectively, to Sandridge) without any of the restrictions sought by TLB and its co-plaintiffs in the underlying complaint.

After that, a limited issue was bifurcated for trial and tried after having been submitted for decision. The limited issue submitted essentially was, according to the Kern court, “the meaning of ... terms of contract” in two select paragraphs contained in a 1949 amendment and a 1963 amendment, which amendments were each part of a collection of associated agreements referenced by the parties there (and here) as “the Blue Book Agreements” or simply “the Blue Book.” TLB and its co-plaintiffs advocated for an interpretation of the select provision supporting the relief sought in their underlying complaint;

Sandridge and RD 761 advocated for an interpretation that would not restrict the use of Kings River water in the manner sought by TLB and its co-plaintiffs.

In very short summary of a very long 35-page ruling issued in June 2021, the Kern court determined (a) the select paragraph of the 1963 amendment did not support the Kern River water use restrictions for which TLB and its co-plaintiffs advocated; and (b) that the select paragraph of the 1949 amendment, while “unambiguously convey[ing]” that Kings River water “may not be physically transported beyond a described area,” was “indefinite” (though, importantly, not ambiguous) with respect to the “described area” referenced in the select paragraph (i.e., “the watershed or service area of the Kings River”) and, that this indefiniteness effectively left that matter of determining “broader” issues of actual “water rights” “for future resolution” according to principles described in the court’s ruling.

Then, just under three and a half years later, in February 2025, one of the co-plaintiffs in the underlying litigation, the Kings River Water Association (KRWA) sent RD 761 a statutory offer to compromise, under Code of Civil Procedure section 998, “any and all claims arising out of the litigation brought by it against [RD 761] ... and the cross-action brought by RD 761 against KRWA” In March of 2025, RD 761 accepted the offer to compromise, and, according to its terms, judgment was entered in favor of KRWA against RD 761 in April 2025.

It is this judgment from which allegedly conflicting claims on the part of RD 761 and Sandridge allegedly arise, according to TLB’s interpleader complaint in this case.

The judgment provides, in significant part, as the complaint alleges, that “RD 761 shall not deliver, and is enjoined from delivering, any Kings River water to its landowners [including Sandridge] or any other party for use on lands outside the Kings River Service Area as shown on Exhibit A to the 1963 Agreement among the member units of the Kings River Water Association.”

Of note, particularly from Sandridge’s perspective, the Kern court, in its ruling on the bifurcated issues, had specifically determined that the language of the 1963 amendment at issue, while explicitly prohibiting “a transfer of an interest in water or water right if such a transfer would result in use outside of” a clearly defined “Kings River Service Area” (an area “contained within the drawn black boundary” of a map attached to the 1963 amendment as its Exhibit A), solely prohibited, by its terms, “hypothecation of interests or rights in water for use outside the defined Kern River Service Area” and not “the physical transport of the water itself” outside that defined area.

In other words, the Kern court determined that the 1963 amendment provided a clearly defined geographic area of restriction (an area marked on the amendment’s Exhibit A) but did not provide for prohibitions on “physical transport” of water outside that clearly defined area that, in the Kern court’s view, would be required to support TLB and its co-plaintiffs relief sought in their complaint.

Also notable, Sandridge’s submits that something untoward was afoot in RD 761’s concession to entry of judgment against it. It submits that an RD 761 board member who resigned was replaced with “an employee of Sandridge’s adversary” and its was “[r]ight away” after this that TLB and KRWA submitted their offer to compromise. Sandridge notes that RD 761’s decision to accept the offer to compromise “is currently the subject of two litigated matters in Kings County, whereby Sandridge is seeking to void the decision”

In any event, though, as it stands today, the record of proceedings in the Kern action reflects, according to Sandridge’s submission of documents of which its requests judicial notice (which the court grants), establish that RD 761 stipulated to judgment as indicated in the interpleader action in this case and that, through that judgment, that which TLB and its co-plaintiffs effectively sought to establish in their complaint was accomplished, notwithstanding that a first phase trial ruling failed to accomplish that result.

Subsequent developments in the Kern litigation

i. Summary judgment/adjudication ruling

Approximately a year after entry of the stipulated judgment, in April 2026, the Kern court issued a ruling on a motion for summary judgment/adjudication by Sandridge.

The Kern court, in its ruling, determined as follows: (1) Sandridge was not a party to the 1949 or 1963 amendments and was not bound by those amendments and, further, was not bound by licenses issued by the State Water Resources Control Board and held by KRWA in trust for its member units; (2) as determined in the first phase bifurcated ruling, the 1949 amendment, while addressing the physical transport of water, did not “establish a definite boundary or specific place of use for water delivered to landowners/farmers with property within a Member Unit of the KRWA”; (3) also as determined in the first phase ruling, “[t]he 1963 Agreement only relates to a limitation on transfer of any right or interest in water within the alleged ‘Service Area’” (italics added), and, the court additionally found, “[t]here is no evidence of such a transfer in rights or interests in water”; and (4) “[t]here is no evidence that RD 761 has transferred Kings River water outside of the Service Area or the watershed.”

The Kern additionally found “the evidence is clear that the Kings River water RD 761 provides to Sandridge is delivered at Empire Weir No. 2, a location that is indisputably within the ‘Service Area’ of the map attached to the 1963 Agreement,” and “[a]s such, delivery to that point cannot be a breach by RD 761 under anyone’s interpretation of [any agreement, inclusive of the 1949 and 1963 amendments, of “the Blue Book”].” “Likewise,” the court found, “the Blue Book Agreement explicitly states [in an indicated paragraph of the 1949 amendment] that the water cannot be governed by the Water Master anywhere below that location [Empire Weir No. 2], which is where Sandridge receives and then uses it.”

The court here notes that the office of “Water Master” was created in the original 1927 agreement of the then-members of the KRWA (which agreement is considered part of “the Blue Book”) with the responsibility “to turn into the ditch or canal of each of the parties hereto [i.e., KRWA’s members] the quantity of [Kings River] water to which such party may be entitled under [an elsewhere described water rights schedule] ... and to oversee the diversion of the waters of said River by the parties hereto, and to examine into all diversions of water from said River by natural and artificial persons not parties hereto, and do and perform such other acts as said Board may direct”

The pertinent implication of the Kern court’s last indicated determination is that, while the court had determined in the bifurcated first phase that, incident to the indefiniteness of the phrase “watershed or service area of Kings River” in the 1949 amendment, that the matter of determining “broader” issues of actual “water rights” would be left for “future resolution” “under a ‘test of reasonableness,’” the court, in its summary judgment ruling, effectively determined that the necessity of such “future resolution” would be entirely unnecessary because (a) “delivery to that point cannot be a breach by RD 761 under anyone’s interpretation of” any of the “Blue Book Agreements,” it being the express position of TLB and its co-plaintiffs’ that that point of delivery is within the “Kings River Service Area” defined in the 1963 amendment, and (b) once “Kings River water RD 761 provides to Sandridge is delivered at Empire Weir No. 2,” “the water cannot be governed by the Water Master anywhere below that location” under the terms of the 1949 amendment.

Accordingly, it is clear that, but for the stipulated judgment entered into by KRWA and RD 761, RD 761 would not be entitled to demand that any water provided to Sandridge “be used within ... the Kings River Service Area,” as defined in the 1963 amendment, and, accordingly, neither TLB, nor RD 761, would be entitled to refuse to facilitate delivery of Kings River water ordered by Sandridge based on any terms of “the Blue Book Agreements.”

Additionally of note, with the aforementioned resolution in Sandridge’s favor on its motion for summary judgment/adjudication, the only remaining issues in the Kern litigation arise under Sandridge’s second amended cross-complaint. According to Sandridge, trial on these issues was recently continued and is now scheduled for November 16, 2026.

ii. Order granting preliminary injunction; subsequent water delivery to Sandridge

After this interpleader action was commenced, and after Sandridge filed the instant motion to change venue, an order to show cause regarding a request by Sandridge for a preliminary injunction came on for hearing in the Kern litigation on June 24, 2026.

On July 23, 2026, the Kern court issued a ruling granting an injunction prohibiting KRWA, TLB, and other KRWA member unit co-plaintiffs in the underlying complaint from “refusing,” during the pendency of the Kern action, “to deliver water or to fulfill or otherwise process water delivery orders in connection with the rights Sandridge holds to 8,390 Acre-Feet of water being stored at Pine Flat Dam through its account with RD 761, notwithstanding (1) the April 16, 2025, stipulated interlocutory consent judgment between KRWA and [RD 761], (2) the complaint in interpleader filed in [this action] ... (3) whether RD 761 has consented to such order or objected to it, or (4) whether the water will be used outside of the 1963 Mapped Service Area.” (Emphasis added.)

Additionally, according to a farm manager of Sandridge, “[t]he Kings River water that is the subject of this interpleader action, which is water allocated to Sandridge through [RD 761] has been fully delivered to and utilized by Sandridge for this irrigation season.”

If Sandridge representations are accurate, then it appears correct that there would be nothing left to determine, as Sandridge indicates, in this interpleader case, but, again, the complaint does suggest, albeit somewhat vaguely, that there will be continuing conflicting claims over other water orders Sandridge “has or will place with TLB.”

Analysis of Sandridge’s motion

Sandridge’s lead contention is that this court “has been improperly thrust into” the still pending disputes in the Kern litigation and that TLB is engaged in “a transparent ‘hail Mary’ effort to shop for a forum that might reach a different result than is now inevitable in the Kern County action.” Sandridge relatedly maintains the only appropriate venue for this case is Kern, where the issues raised in the underlying complaint “have been pending since 2018.”

And, “[u]nless venue is moved to Kern County,” Sandridge asserts, it “will ... move to dismiss and/or abate this action on the grounds another action is pending in Kern County and that action must be resolved prior to consideration of the issues raised in the interpleader action.”

Per authorities cited by Sandridge, the rule of exclusive concurrent jurisdiction provides, “[w]here two [courts] have concurrent jurisdiction over the same parties and subject matter, the tribunal which first acquires jurisdiction of the parties is entitled to retain it exclusively,” and “[o]rdinarily, the other court must abate its proceedings on demand.” (Mission Imports, Inc. v. Superior Court (1982) 31 Cal.3d 921, 926, fn. 3 [184 Cal.Rptr. 296, 647 P.2d 1075], citation omitted; see also Travelers Indem. Co. v. Lara (2022) 84 Cal.App.5th 1119, 1129 [301 Cal.Rptr.3d 57]) [observing same].)

Sandridge, of course—while promising to, later, if necessary, file a motion “to dismiss and/or abate” these proceedings based on this rule and its apparent position that Kern has exclusive concurrent jurisdiction—has not filed such a motion.

Accordingly, the court is not occasioned, here, to determine whether it is appropriate “to dismiss and/or abate” these proceedings based on exclusive concurrent jurisdiction in the Kern litigation.

Moving on, the court turns to Sandridge’s arguments actually bearing on its motion to change venue.

To begin, Sandridge contends that, under Code of Civil Procedure section 394, “a public entity may not unilaterally select a neutral venue and sue in that venue without a court order,” and “[a] public entity must initially file the action in a venue that is proper under the general venue rules, such as those outlined in Cal Code Civ Proc §395 which generally requires filing in the county where the defendant resides or where the obligation arose.”

These contentions albeit vague on particulars, and somewhat difficult to parse, do convey matters of substantive import correctly.

First, it is important to clarify, because Sandridge obfuscates the matter at points in its briefing, that Code of Civil Procedure section 394 has no bearing on the determination of the appropriate initial venue of an action because, as Sandridge expressly recognizes, “it does not control original venue.” (*Arntz Builders v. Superior Court* (2004) 122 Cal.App.4th 1195, 1203 [19 Cal.Rptr.3d 346].)

Section 394, rather, “ ‘provides for removal of a case which is pending in a proper county.’ [Citation.]” (*County of San Bernardino v. Superior Court* (1994) 30 Cal.App.4th 378, 385 [35 Cal.Rptr.2d 760].)

Sandridge observes this latter point expressly, but, confusingly, also requests “a ruling that venue was proper originally to Kings County under section 394.” And, while it is clear Sandridge is aware that “original venue,” in Kings County or elsewhere, cannot be determined by section 394 (again, it expressly states as much), the problem is that Sandridge never gets around to expressly identifying the law that does determine original venue.

Sandridge does assert, in conclusory fashion, that “Kings County is the proper venue of origin,” but only with troubling citation to section 394.

Sandridge also asserts, the court notes, without expressly identifying a relevant statute that determines venue, (1) that TLB “resides in Kings County for venue purposes”; (2) that, based on TLB’s allegations in the underlying complaint in the Kings litigation, TLB is “a Kings County public entity for venue purposes”; (3) that “Sandridge’s principle place of business is Santa Clara and its lands and water at issue in the underlying dispute are in Kings County.”

The court, however, is unsure what Sandridge intends to make of these assertions because Sandridge does not state its position expressly.

One possible clue is Sandridge’s statement that “[a] public entity must initially file the action in a venue that is proper under the general venue rules, such as those outlined in Cal Code Civ Proc §395 which generally requires filing in the county where the defendant resides or where the obligation arose.” This statement suggests, albeit only inferentially, that Sandridge may mean to assert determination of original venue is governed by section 395. That is not, however, an argument Sandridge actually makes.

Further confusing matters, though, is that elsewhere in the motion, Sandridge contends that this action “is local in that it involves real property of Sandridge and the rights to place of use of water on such property that is tied to the ownership of such property,” followed by a citation to Code of Civil Procedure section 392. Sandridge asserts that “[a]ll of [its] properties at issue are in Kings County because the lands owned that are at issue are within the RD761 boundaries in Kings County ... and the place the water is being used is on Sandridge owned land in Dudley Ridge area which is also in Kings County,” but it never expressly states that original venue is governed by section 392.

The court might attribute this position to Sandridge, but directly contravening that possible reading of the motion, Sandridge expressly disclaims that this is its position in its reply. Sandridge states, rather, “the disputes between the parties, both in this action and in the Kern County action, do not relate to the recovery of real property or a determination of any parties’ rights or interests therein or to injuries to real property.”

Perhaps still, the court might derive that Sandridge means to assert venue is governed by some combination of rules cobbled together from section 392 and 395. But that cannot be it, either, however, because section 392 cannot concomitantly govern venue coextensively with section 395. That is because section 392 provides for original venue in actions, *inter alia*, for recovery of real property, or interests therein, in “the superior court in the county where the real property that is the subject of

the action, or some part thereof, is situated” (§ 392, subd. (a)), and section 395 only governs venue of proceedings “[e]xcept as otherwise provided by law” (§ 395, subd. (a)).

And so, the court is left unable to discern what Sandridge’s position is on the statute that determines venue in the first instance. To be clear, this harping on Sandridge’s failure to expressly identify a statutory basis for original venue is not intended to disparage Sandridge’s manner of argument; rather, the court identifies these issues because they directly bear on disposition of Sandridge’s motion according to the arguments it advances.

Sandridge’s fundamental aim is to get this matter over to Kern county. It submits that “had [TLB] properly filed in Kings County, Kings County would have been obliged [on a request made under section 394, subdivision (a)] to order the case to a neutral venue, [and] since the very issues [raised in the interpleader action, according to Sandridge] have been pending in Kern County (as previously stipulated by the parties ...) for over 7 years, the only proper neutral venue is Kern County where the issues are already pending.”

In effect, Sandridge’s motion sets up a two-step. First, Sandridge wants the court to determine that original venue in this action is in Kings. Second, Sandridge wants to engraft—purportedly enabled by an initial determination of original venue in Kings—a motion to transfer venue to a “neutral county,” with Sandridge arguing, based on law not applicable to venue (the rule of exclusive concurrent jurisdiction) that “the only proper neutral venue is Kings County.”

Sandridge’s position, and its request of this court, thus, necessarily depends on the essential proposition, as threshold matter, that “the proper venue of origin” of the interpleader action is Kings County. Absent establishment of that proposition, however, there is patently no basis for a determination by this court that any venue other than this court is a more proper venue for the interpleader action because it will not have shown that venue in this county is improper in the first place. “[Code of Civil Procedure] Section 397 sets forth the grounds for granting a change of venue, including ‘[w]hen the court designated in the complaint is not the proper court.’ (§ 397, subd. (a).)” (County of Siskiyou v. Superior Court (2013) 217 Cal.App.4th 83, 94 [158 Cal.Rptr.3d 164].) If venue is proper in Tulare County, however, “then the grounds set forth in section 397 do not apply.” (Ibid.)

The court finds, for reasons obvious from the above, that Sandridge has failed to establish the essential threshold matter of what county is the proper county of original venue (and by extension, that Tulare is not that county) because it fails even to identify a governing venue statute to determine this county is not a proper venue, and, accordingly, the court concludes that Sandridge’s motion must be denied.

Needless to say, Sandridge’s request for sanctions is also denied. Of course, that is largely because it has not prevailed on its motion, but, even if it had, amongst the matters “the court shall take into consideration” in the exercise of its discretion to award fees, is “whether an offer to stipulate to change of venue was reasonably made and rejected” (Code Civ. Proc., § 396b, subd. (b)) and Sandridge itself submits that it made no such offer.

The court makes this point because the court cannot help but notice that meet and confer efforts could have potentially well-served Sandridge in at least developing a fully formed position with respect to venue prior to the filing of the instant motion.

What’s more, the court notes Sandridge’s counsel’s statement that he “felt it imprudent to meet and confer” with TLB’s counsel regarding Sandridge’s venue dispute because of his vague “concern” that TLB’s counsel “would attempt to seek emergent relief from this Court for a preliminary ruling indicating that TLBWSD need not deliver the water that will be requested by Sandridge” is entirely without merit and obviously could not support an award of sanctions even had Sandridge prevailed in the underlying motion.

First, if it is true, as Sandridge maintains, that the parties’ disputes are now properly before the court in Kern, nothing about Sandridge’s rush to file a motion to change venue of the interpleader action in this court would clearly obviate the risk—assuming there was any risk at all—of TLB attempting “to seek emergent relief ... for a preliminary ruling indicating that

TLBWSD need not deliver the water that will be requested by Sandridge" in Kern. By Sandridge's own account, TLB already attempted this in the Kern litigation before the stipulated judgment was entered.

Second, even if the proceedings in this case were the exclusive possible venue for the ex parte application about which Sandridge's counsel had "concern," such "concern" would not be a good reason to potentially obviate the necessity of Sandridge's motion through meet and confer efforts, as section 396b, subdivision (b), clearly contemplates and encourages.

TLB's request for sanctions is also denied. Sandridge's failure to meet and confer, while ill-conceived, does not alone support sanctions. Additionally, while Sandridge has bungled the effort to set up its motion, its failure to do so is not easily attributable to the absence of good faith. The determination of venue in these proceedings is complicated by a number of factors, chiefly amongst them being that the association between Kings River water, as administered in the KRWA system, and the real property of those holding rights to that water vis-à-vis their association with KRWA "member units" is a complex matter, and, further, still, there is some question, in the court's view, as to whether this interpleader action actually concerns rights to the use of water in the sense determined in the cases TLB cites in its opposition. The court notes the alleged conflicting claims identified in TLB's complaint, while they bear on Sandridge's water rights, ultimately appear to relate to some undefined sense of uncertainty with respect to the efficacy of a stipulation that defined water rights of the parties irrespective of what the parties' respective rights and obligations with respect to Kings River water may have been prior to the stipulation.

In sum, then, Sandridge's motion is denied, as are both parties' requests for sanctions.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.